

**IN RE ALLOY MARINE PRODUCTS, INC.**

**CASE NUMBER: 26CV-0211072**

**Tentative Ruling on Petition for Order Reinstating to Active Status:** Petitioner Michael Yochum moves for an Order directing and authorizing the Secretary of State of California to reinstate Alloy Marine Products, Inc. (Entity No. C1583967) to active status pursuant to Gov. Code § 12261. Petitioner has provided evidence that, due to a misunderstanding between Petitioner and Denise Yochum, Denise Yochum who is a director of the corporation, filed a Certificate of Dissolution that included the false statement that there had been a vote to dissolve the corporation and that all shareholders had voted to dissolve the corporation. The Court finds that “[t]he factual representations by a shareholder, member, partner, or other person that are contained in the termination document are materially false” within the meaning of Gov. Code § 12261(a)(1). The Court therefore orders reinstatement of C1583967 to active status.

The Petition is **GRANTED**. Petitioner provided a proposed Order that does not contain all the necessary language. Petitioner shall provide a proposed Order that also includes the language contained in Gov. Code § 12261(b)(2). Additionally, paragraph 4 on page two of the proposed Order does not match the language in Gov. Code § 12261(b)(3) so this will need to be corrected.

**AMARANT VS. MONARCH LEARNING CENTER CHARTER SCHOOL, ET AL.**

**CASE NUMBER: 23CV-0202392**

**Tentative Ruling on Petition to Approve Minor’s Compromise:** This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Truth Amarant’s claims. Deborah Amarant was appointed as the minor’s Guardian ad Litem on September 22, 2023. California Rule of Court, Rule 7.950 states that a petition for court approval of a minor’s compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition does not contain sufficient information for the Court to find that the settlement is in the minor’s best interest. No medical records were provided and it is unclear if the minor will need future medical care, including scar revision. If future medical care is necessary, information regarding possible costs needs to be provided. It is unclear how the parties arrived at a settlement of \$155,000 and no information was provided regarding insurance policy limits.

Even if the Court were to be provided sufficient information to determine that the settlement is in the best interest of the minor, there are still issues with how the money will be distributed. The Petition lists a guardianship of the estate under this case number. There is no guardianship of the estate in this case. If the intent is to place the money in a trust account (versus a blocked account), a guardianship of the estate will need to be established in probate court. Regarding costs, counsel requests a total of \$5,447.98, with the majority of the costs being attributed to One Legal, Lopez & Associates, and Attorneys to Go with no further explanation for the reasons for the cost. More detail is necessary in order for the Court to find that these costs were reasonably incurred. Petitioner will need to provide the missing information in a Supplement to the Petition.

The future hearing date is dependent on whether Petitioner intends to establish a guardianship of the estate or if the intent is actually to place the net settlement in a blocked account. Counsel shall attend the hearing and should be prepared to inform the Court whether the intent is to place the settlement funds in a blocked account, or if a guardianship of the estate needs to be established. A new hearing date will be selected at the hearing. Any supplemental filings will be due no fewer than five court days prior to the new hearing date. The clerk is directed to vacate the August 10, 2026 review hearing. **An appearance by counsel only is necessary on today’s calendar. Petitioner and the minor need not attend today’s hearing.**